



CHAPTER liii

An Act to confirm a Scheme of the Charity Commissioners for the application or management of the Charity of Frances Barker and certain other Charities in the City of York.
[5th July 1956.]

WHEREAS the Charity Commissioners in their Report to Her Majesty of their proceedings during the year one thousand nine hundred and fifty-five reported that they had approved and certified a Scheme for the application or management of the following Charities in the City of York:—

1. Charity of Frances Barker for Non-Educational purposes;
2. Charity of Sir Martin Bowes;
3. Charity of George Buck;
4. Charity known as St. Catherine's Hospital (including the subsidiary Charities of John Hartley, James Luntley, Henry Myers, Green Simpson and Charles Yates);
5. Clifton Parish Land Charity;
6. Cordwainers' Pension Charity (including the subsidiary Charity of Mark Buller);
7. Charity of James Cotterill;
8. Charity known as the Cremitt Money;
9. Charity of Fabian Farley;
10. Charity of Lancelot Foster;
11. Charity called The Thomas Fothergill Home for Working Men;
12. Charity called The Thomas Fothergill Home for Working Women;
13. Charity of Rawlins Gould;
14. Charity of John Hartley;
15. Charity of Lady Sarah Hewley;

16. Charity of Christopher Hutton for Non-Educational purposes;
17. Charity known as Sir Arthur Ingram's Hospital (including the subsidiary Charity of Eve Atkinson);
18. Charity of the Reverend Charles Jackson;
19. Charity of Peter Johnson;
20. Charity of Bridget Lawrence;
21. Charity of Arthur Lawson;
22. Charity of Doctor Joseph Loveland;
23. Charity consisting of three gifts of James Melrose;
24. Charity called Mrs. Ann Middleton's Hospital (including the subsidiary Charities of Stephen Beckwith, John Richard and Edward Hill, Mary Winfield Lambert, William Monckton, Thomas Norfolk, Frances Pool, Green Simpson and George Townend);
25. Charity of Mary Musgrave;
26. Charity of Henry Myers;
27. Charity of Richard North;
28. Charity of Richard Pickard;
29. Charity of Catherine Ramsden for Non-Educational purposes;
30. Charity of Thomas Rogerson;
31. Charity known as the York Soup Kitchen;
32. Charity known as the Terry Memorial Homes;
33. Charity known as St. Thomas' Hospital (including the subsidiary Charities of Stephen Beckwith, John Hartley, James Luntley, Green Simpson and George Townend);
34. Sir Henry Thompson's Pension Charity (including the subsidiary Charities of John Girdler and Thomas Norfolk);
35. Charity known as Turner's Gift;
36. Charity of John Vaux;
37. Charity of Thomas Harry Walker;
38. Charity of Ann Watson;
39. Charity known as Sir Robert Watter's Hospital (including the subsidiary Charity of Marion Bellerby);
40. Charity known as Sir Robert Watter's Gift;
41. Charity of William Weddall;
42. Charity of Sir Thomas White;
43. Charity known as Whiteheads Gift;
44. Charity called the Sisters Wilson's Home;
45. Charity of James Woodhouse;
46. Charity of William Wright;

And whereas it is expedient that the Scheme as the same is fully set out and defined in the schedule to this Act should be confirmed:

Be it therefore enacted by the Queen's most Excellent Majesty by and with the advice and consent of the Lords Spiritual and Temporal and Commons in this present Parliament assembled and by the authority of the same as follows:—

1. The said Scheme is hereby confirmed:

Confirmation
of Scheme.

Provided always that nothing in this Act or in the said Scheme shall be held to interfere with the ordinary jurisdiction over endowed charities now exercisable by the High Court of Justice and the Charity Commissioners.

2. This Act may be cited as the Frances Barker and certain other Charities (City of York) Scheme Confirmation Act 1956.

Short title.

SCHEDULE
SCHEME FOR THE APPLICATION OR
MANAGEMENT OF

THE FOLLOWING CHARITIES, BEING CERTAIN OF THE MUNICIPAL CHARITIES, IN THE CITY OF YORK, WHICH CHARITIES ARE COMPRISED IN ONE OR MORE SCHEMES OF THE CHARITY COMMISSIONERS DATED THE 14TH MARCH 1902, 18TH AUGUST 1916, 9TH AUGUST 1921, 30TH JUNE 1922, 17TH JULY 1923, 24TH FEBRUARY 1925, 20TH JANUARY 1933, 28TH FEBRUARY 1936, 17TH MARCH 1939, 3RD OCTOBER 1941 AND 1ST FEBRUARY 1952:—

1. THE CHARITY OF FRANCES BARKER FOR NON-EDUCATIONAL PURPOSES;
2. THE CHARITY OF SIR MARTIN BOWES;
3. THE CHARITY OF GEORGE BUCK;
4. THE CHARITY KNOWN AS ST. CATHERINE'S HOSPITAL (INCLUDING THE SUBSIDIARY CHARITIES OF JOHN HARTLEY, JAMES LUNTLEY, HENRY MYERS, GREEN SIMPSON AND CHARLES YATES);
5. CLIFTON PARISH LAND CHARITY;
6. CORDWAINERS' PENSION CHARITY (INCLUDING THE SUBSIDIARY CHARITY OF MARK BULLER);
7. THE CHARITY OF JAMES COTTERILL;
8. THE CHARITY KNOWN AS THE CREMITT MONEY;
9. THE CHARITY OF FABIAN FARLEY;
10. THE CHARITY OF LANCELOT FOSTER;
11. THE CHARITY CALLED THE THOMAS FOTHERGILL HOME FOR WORKING MEN;
12. THE CHARITY CALLED THE THOMAS FOTHERGILL HOME FOR WORKING WOMEN;
13. THE CHARITY OF RAWLINS GOULD;
14. THE CHARITY OF JOHN HARTLEY;
15. THE CHARITY OF LADY SARAH HEWLEY;
16. THE CHARITY OF CHRISTOPHER HUTTON FOR NON-EDUCATIONAL PURPOSES;
17. THE CHARITY KNOWN AS SIR ARTHUR INGRAM'S HOSPITAL (INCLUDING THE SUBSIDIARY CHARITY OF EVE ATKINSON);
18. THE CHARITY OF THE REVEREND CHARLES JACKSON;
19. THE CHARITY OF PETER JOHNSON;
20. THE CHARITY OF BRIDGET LAWRENCE;
21. THE CHARITY OF ARTHUR LAWSON;
22. THE CHARITY OF DOCTOR JOSEPH LOVELAND;
23. THE CHARITY CONSISTING OF THE THREE GIFTS OF JAMES MELROSE;
24. THE CHARITY CALLED MRS. ANN MIDDLETON'S HOSPITAL (INCLUDING THE SUBSIDIARY CHARITIES OF STEPHEN BECKWITH, JOHN RICHARD AND EDWARD HILL, MARY WINFIELD LAMBERT, WILLIAM MONCKTON, THOMAS NORFOLK, FRANCES POOL, GREEN SIMPSON AND GEORGE TOWNEND);

25. THE CHARITY OF MARY MUSGRAVE;
26. THE CHARITY OF HENRY MYERS;
27. THE CHARITY OF RICHARD NORTH;
28. THE CHARITY OF RICHARD PICKARD;
29. THE CHARITY OF CATHERINE RAMSDEN FOR NON-EDUCATIONAL PURPOSES;
30. THE CHARITY OF THOMAS ROGERSON;
31. THE CHARITY KNOWN AS THE YORK SOUP KITCHEN;
32. THE CHARITY KNOWN AS THE TERRY MEMORIAL HOMES;
33. THE CHARITY KNOWN AS ST. THOMAS' HOSPITAL (INCLUDING THE SUBSIDIARY CHARITIES OF STEPHEN BECKWITH, JOHN HARTLEY, JAMES LUNTLEY, GREEN SIMPSON AND GEORGE TOWNEND);
34. SIR HENRY THOMPSON'S PENSION CHARITY (INCLUDING THE SUBSIDIARY CHARITIES OF JOHN GIRDLER AND THOMAS NORFOLK);
35. THE CHARITY KNOWN AS TURNER'S GIFT;
36. THE CHARITY OF JOHN VAUX;
37. THE CHARITY OF THOMAS HARRY WALKER;
38. THE CHARITY OF ANN WATSON;
39. THE CHARITY KNOWN AS SIR ROBERT WATTER'S HOSPITAL (INCLUDING THE SUBSIDIARY CHARITY OF MARION BELLERBY);
40. THE CHARITY KNOWN AS SIR ROBERT WATTER'S GIFT;
41. THE CHARITY OF WILLIAM WEDDALL;
42. THE CHARITY OF SIR THOMAS WHITE;
43. THE CHARITY KNOWN AS WHITEHEADS GIFT;
44. THE CHARITY CALLED THE SISTERS WILSON'S HOME;
45. THE CHARITY OF JAMES WOODHOUSE;
46. THE CHARITY OF WILLIAM WRIGHT.

1. *Administration of Charities.*—The above-mentioned Charities and the endowments thereof specified in the first schedule hereto and all other the endowments (if any) of the Charities shall be administered and managed subject to and in conformity with the provisions of this Scheme under the title of the York City Charities by the body of Trustees hereinafter constituted.

2. *Investment of cash.*—All sums of cash now or at any time belonging to the Charities and not needed for immediate working purposes shall be invested (unless otherwise ordered) as soon as possible under the authority of a further Order of the Charity Commissioners in the name of The Official Trustees of Charitable Funds.

TRUSTEES

3. *Trustees.*—The body of Trustees shall consist when complete of thirteen competent persons being—

Five Representative Trustees; and
Eight Co-optative Trustees.

4. *Representative Trustees.*—The Representative Trustees shall be appointed by the council of the City of York. Each appointment shall be made for a term of four years at a meeting convened and held

according to the ordinary practice of the council. The chairman of the meeting shall cause the name of each person appointed to be notified forthwith to the Trustees or their clerk. The person appointed may be but need not be a member of the council.

5. *First Representative Trustees.*—The first Representative Trustees shall be appointed as soon as possible after the date hereof and their names shall be notified to Charles William Robinson, of Clifford House, Clifford Street, in the City of York, Solicitor, on behalf of the Trustees. At the end of two years from the date of the appointment of the first Representative Trustees if more than three remain Trustees one-half of them as nearly as may be to be determined by lot if necessary shall go out of office but shall be eligible for reappointment.

6. *Co-optative Trustees.*—The Co-optative Trustees shall be persons residing or carrying on business in or near the City of York.

7. *First Co-optative Trustees.*—The following persons shall be the first Co-optative Trustees and subject to the provisions hereinafter contained for determination of trusteeship shall be entitled to hold office for the following periods respectively:—

MARY CUDWORTH, O.B.E., J.P., of Butts Close, 138 Clifton, Spinster,

CUTHBERT MORRELL, of West Mount, Esquire, and

WILLIAM LOUIS LAWTON, C.B.E., J.P., of Copmanthorpe Manor, Esquire, all in or near the City of York, all for five years from the date of this Scheme;

EDNA ANNIE CRICHTON, of 30 Clifton, Widow,

NANCY MARGARET KAY, of 11 Castlegate, Spinster, and

LEWIS EDGAR WADDILOVE, of Beverley House, Shipton Road, all in the said city, all for three years from the date of this Scheme;

JANE SYLVIA GERTRUDE PONTEFRAC, of County Hospital, Spinster, and

ARTHUR SYKES RYMER, O.B.E., J.P., of Bachelor Hill, Askham Lane, both in the said city, both for two years from the date of this Scheme.

8. *Future Co-optative Trustees.*—Every future Co-optative Trustee shall be appointed for a term of five years by a resolution of the Trustees to be passed at a special meeting.

9. *Declaration by Trustees.*—No person shall be entitled to act as a Trustee whether on a first or on any subsequent entry into office until after signing in the minute book of the Trustees a declaration of acceptance and of willingness to act in the trusts of this Scheme.

10. *Determination of trusteeship.*—Any Co-optative Trustee who ceases to be qualified as aforesaid, any Trustee who is absent from all meetings of the Trustees during a period of one year or who is adjudged bankrupt or makes a composition or arrangement with his creditors or who is incapacitated from acting or who communicates in writing to the Trustees a wish to resign shall cease thereupon to be a Trustee.

11. *Vacancies.*—Upon the occurrence of a vacancy the Trustees shall cause a note thereof to be entered in their minute book at their next meeting and in the case of a vacancy in the office of Representative Trustee shall cause notice thereof to be given as soon as possible to the council. Any competent Trustee may be reappointed. No vacancy in the office of Co-optative Trustee shall be filled until after the lapse of one calendar month from its occurrence.

MEETINGS AND PROCEEDINGS OF TRUSTEES

12. *Ordinary meetings.*—The Trustees shall hold at least two ordinary meetings in each year.

13. *First meeting.*—The first meeting of the Trustees shall be summoned by the said Charles William Robinson or if he fails for two calendar months after the date of this Scheme to summon a meeting by any two of the Trustees.

14. *Chairman.*—The Trustees at their first ordinary meeting in each year shall elect one of their number to be chairman of their meetings until the commencement of the first ordinary meeting in the following year. The chairman shall always be eligible for re-election. If at any meeting the chairman is not present within ten minutes after the time appointed for holding the same or there is no chairman the Trustees present shall choose one of their number to be chairman of the meeting.

15. *Special meetings.*—A special meeting may be summoned at any time by the chairman or any two Trustees upon four days' notice being given to all the other Trustees of the matters to be discussed.

16. *Quorum.*—There shall be a quorum when four Trustees are present at a meeting.

17. *Voting.*—Every matter shall be determined by the majority of votes of the Trustees present and voting on the question. In case of equality of votes the chairman of the meeting shall have a casting vote whether he has or has not voted previously on the same question but no Trustee in any other circumstances shall give more than one vote.

18. *Minutes and accounts.*—A minute book and books of account shall be provided and kept by the Trustees. All proper accounts in relation to the Charities shall be made out in each year and certified in such manner as the Charity Commissioners require and copies thereof shall be transmitted to the said Commissioners in compliance with the provisions of the Charitable Trusts Acts.

19. *General power to make regulations.*—Within the limits prescribed by this Scheme the Trustees shall have full power from time to time to make regulations for the management of the Charities and for the conduct of their business including the summoning of meetings, the deposit of money at a proper bank and the custody of documents.

20. *Officers.*—The Trustees may appoint some fit person to be their clerk and may also appoint any other necessary or proper officers for their assistance in the administration and management of the Charities

and the allocation and distribution of the benefits thereof. Every officer of the Charities shall hold office during the pleasure of the Trustees and the Trustees may pay to any officer (not being a Trustee) such reasonable salary as they think fit.

MANAGEMENT OF LANDS

45 & 46 Vict.
c. 80.

21. *Allotments Extension Act, 1882.*—The Trustees shall let and otherwise manage in conformity with the provisions of the Allotments Extension Act, 1882, such of the lands belonging to the Charities as are subject to the provisions of section 4 of that Act. The Trustees may set apart and let in allotments in the manner prescribed by and subject to the provisions of the said Act any portion of the land belonging to the Charities other than buildings and the appurtenances of buildings.

22. *Management and letting of lands.*—Subject as aforesaid the Trustees shall let and otherwise manage all the lands belonging to the Charities not required to be retained or occupied for the purposes thereof. In every case the Trustees shall give public notice of the intention to let any land in such manner as they consider most effectual for ensuring full publicity. The Trustees shall not create any tenancy in reversion after more than three years of any existing term or for more than 21 years certain or for less than the improved annual value at rackrent without the sanction of the Charity Commissioners or a competent court.

23. *Leases.*—The Trustees shall provide that on the grant by them of any lease the lessee shall execute a counterpart thereof. Every lease shall contain covenants on the part of the lessee for the payment of rent, the proper cultivation of the land and all other usual and proper covenants applicable to the property comprised therein and a proviso for re-entry on non-payment of the rent or non-performance of the covenants.

24. *Repair and insurance.*—The Trustees shall keep in repair and insure for full value against fire all the buildings of the Charities not required to be kept in repair and insured by the lessees or tenants thereof.

25. *Sales.*—(1) Subject to the authority of a further Order of the Charity Commissioners the Trustees may sell the land with the almshouses thereon belonging to the Charity numbered 39 above and specified in the schedule hereto and may do and execute all proper acts and assurances for carrying the sale into effect. Unless otherwise ordered the clear proceeds of the sale shall be invested in the name of The Official Trustees of Charitable Funds in trust for the said Charity numbered 39.

(2) Subject to the authority of a further Order of the said Commissioners the Trustees may sell the land with the almshouses thereon belonging to the Charity numbered 44 above and specified in the said schedule and may do and execute all proper acts and assurances for carrying the sale into effect. Unless otherwise ordered the clear proceeds of the sale shall be invested in the name of the said Official Trustees in trust for the said Charity numbered 44.

TITLES

26. *Titles.*—(1) Upon the completion of the first above-mentioned sale the said Charity numbered 39 above shall be administered and managed under the title of Sir Robert Watter's Charity.

(2) Upon the completion of the second above-mentioned sale the said Charity numbered 44 above shall be administered and managed under the title of Sisters Wilson's Pension Charity.

APPLICATION OF INCOME

27. *Expenses of management.*—The Trustees shall first defray—

(1) the cost of repairs and insurance and all other charges and outgoings payable in respect of the property belonging to the Charities numbered 4, 11, 12, 17, 24, 32, 33, 39 and 44 above out of the income of the said Charities respectively;

(2) All the proper costs, charges and expenses of and incidental to the administration and management of the Charities and as between the Charities so far as may be rateably.

28. *Specific payments.*—The Trustees shall pay out of the income of the Charities named in the first column of the second schedule hereto to the person or persons named in the second column the yearly sums set forth in the third column.

29. *Clear yearly income.*—Subject to the payments aforesaid the Trustees shall apply the clear yearly income of the Charities in manner hereinafter provided.

BRANCHES

30. *Branches.*—(1) The clear yearly income of the Charities shall be administered in three branches to be called respectively the Advancement Branch, the Almshouse and Pension Branch and the Poor's Branch.

(2) £60 or such sum as the Charity Commissioners approve from time to time of the said income shall belong to the Advancement Branch.

(3) Two-third parts of the residue of the said income shall belong to the Almshouse and Pension Branch.

(4) One-third part of the residue of the said income shall belong to the Poor's Branch.

ADVANCEMENT BRANCH

31. *Application of income.*—The Trustees shall apply the income of the Advancement Branch in one or both of the following ways for the benefit of such deserving and necessitous children resident in the City of York as the Trustees select for the purpose:—

(1) in assisting them by the provision of outfits (including clothes, books, tools, travelling expenses, admission fees, or the like) or otherwise upon their entering or to enable them to enter upon a trade, profession or occupation or into service;

(2) in making payments for maintenance, including payments for travelling expenses, to enable them to receive instruction in workshops or at classes or otherwise so as to prepare them for further instruction or employment.

ALMSHOUSE AND PENSION BRANCH

32. *Extraordinary Repair Fund.*—(1) Subject to any further Order or Orders of the Charity Commissioners a fund for the extraordinary repair, improvement or rebuilding of the almshouses belonging to the Charities shall be provided and maintained as follows.

(2) The said Official Trustees shall transfer in their books to the credit of an account to be entitled Almshouse Extraordinary Repair Fund the investments specified in the said schedule and standing to the credit of the two accounts entitled Mrs. Ann Middleton's Hospital Extraordinary Repair Fund and the account entitled The Thomas Fothergill Home for Working Men and The Thomas Fothergill Home for Working Women Extraordinary Repair Fund.

(3) The Trustees shall pay to the said Official Trustees for the credit of the said account to be entitled Almshouse Extraordinary Repair Fund a yearly sum of not less than £250 out of the income of the Almshouse and Pension Branch and the said Official Trustees shall invest the yearly sum so paid and the income of the investments from time to time standing to the credit of the said account at compound interest in the purchase in their name of one or more of the stocks, funds and securities (other than real securities) authorised by law for the investment of trust funds.

(4) All stocks, funds and securities standing to the credit of the said account may be applied from time to time by the Trustees for the extraordinary repair, improvement or rebuilding of the almshouses for the time being belonging to the Charities.

33. *Benefit of almspeople and pensioners.*—Subject to the payments aforesaid the Trustees shall apply the income of the Almshouse and Pension Branch in giving effect to the provisions hereinafter contained for the benefit of the almspeople and pensioners of the Charities and otherwise for the benefit of the said almspeople and pensioners or any of them in such manner as the Trustees think fit from time to time.

ALMSHOUSES, ALMSPEOPLE AND PENSIONERS

34. *Almshouses.*—The almshouses belonging to the Charities and the property heretofore occupied therewith shall be appropriated and used for the residence of almspeople in conformity with the provisions of this Scheme.

35. *Saving for existing almspeople and pensioners.*—Appointments of almspeople and pensioners under this Scheme shall be made without prejudice to the interests of the existing almspeople and pensioners.

36. *Qualifications of almspeople and pensioners.*—(1) The almspeople and pensioners shall be poor persons of good character who (except in special cases to be approved by the Charity Commissioners) have resided in the City of York for not less than four years next preceding the time of appointment.

(2) A married couple may be appointed almspeople if both the husband and the wife have the required qualifications and if in the opinion of the Trustees suitable accommodation is available.

37. *Attendance in illness.*—The Trustees may provide the almspeople at the cost of the Almshouse and Pension Branch with any necessary attendance in case of illness or permanent infirmity.

38. *Stipends, etc. of almspeople and pensioners.*—There may be paid to each almsperson and shall be paid to each pensioner out of the income of the Almshouse and Pension Branch by weekly or other periodical payments, as the Trustees think fit, such a stipend as the Trustees from time to time may fix, having regard to the needs of the respective almspeople and pensioners and to the income and other circumstances of that branch; provided that the Trustees, instead of paying the whole amount of the stipend to any almsperson or pensioner in money, may expend from time to time the whole or any portion thereof for his or her benefit as they think fit.

39. *Contributions.*—The Trustees may make it a condition of appointing or permitting any person to be or remain an almsperson that he or she shall contribute towards the cost of maintaining the almshouses a weekly sum of not more than 7s. 6d. or such sum as the Charity Commissioners approve from time to time.

40. *Notice of vacancy.*—No appointment of an almsperson or pensioner shall be made by the Trustees until a sufficient notice of an existing vacancy specifying the qualifications required from candidates has been published in the City of York by advertisement or otherwise so as to give due publicity to the intended appointment but it shall not be necessary to publish a notice if a vacancy occurs within twelve calendar months after the last notice of a vacancy has been published. Notices may be according to the form annexed hereto.

41. *Applications for appointment.*—All applications for appointment shall be made in writing to the Trustees or their clerk in such manner as the Trustees direct. Before appointing any applicant to be an almsperson or a pensioner the Trustees shall require him or her to attend in person unless he or she is physically disabled or the Trustees are of opinion that special circumstances render this unnecessary. Every applicant must be prepared with sufficient testimonials and other evidence of his or her qualification for appointment.

42. *Selection of almspeople and pensioners.*—The almspeople and pensioners shall be selected under the following conditions:—

(1) After full investigation of the character and circumstances of the applicants.

(2) Where claims are equal preference shall be given to those applicants who have resided longest in the City of York.

For the purposes of this clause the Trustees may avail themselves of the services of any charity organisation society or other like agency.

43. *Term of pensions.*—Each pensioner shall be appointed for a term not exceeding three years in the first instance but may be continued as a pensioner if the Trustees think fit for a further period of not more than three years at each continuation.

44. *Appointment of almspeople and pensioners.*—Every appointment of an almsperson or of a pensioner shall be made by the Trustees at a special meeting.

45. *Records.*—The Trustees shall provide and keep a book in which shall be entered the name, age and description of every person appointed to be an almsperson or a pensioner, the date of every appointment and the date and occasion of every vacancy. They shall also keep a register of all applications for appointment.

46. *Absence from almshouses.*—No almsperson shall be absent from the almshouses for a period exceeding seven days without the consent in writing of the Trustees or their clerk, but in special cases and for any sufficient reason such consent may be given after the absence has occurred.

47. *Rooms not to be let.*—No almsperson shall be permitted to let or part with the possession of the room or rooms allotted to him or her or except with the special permission of the Trustees to suffer any person to share the occupation of the same or of any part thereof.

48. *Matrons and nurses.*—The Trustees if they think fit whenever the income of the Almshouse and Pension Branch suffices for the purpose may appoint matrons or nurses dismissible at their pleasure to perform such duties as may be necessary for the superintendence and care of the almspeople, and in particular for almspeople who are infirm, at such reasonable salary as they think fit and may allot to the matrons or nurses rooms in the almshouses as residences while they hold office.

49. *Removal of almspeople and pensioners.*—(1) The following persons may be removed from being almspeople or pensioners:—

- (a) Any almsperson or pensioner who in the opinion of the Trustees is guilty of insobriety, insubordination, breach of regulations or immoral or improper conduct;
- (b) Any almsperson or pensioner who in the opinion of the Trustees no longer has the required qualifications;
- (c) Any almsperson or pensioner who has been appointed without having the required qualifications;
- (d) Any almsperson who is suffering from mental or other disease or infirmity rendering him or her unfit to remain an almsperson;
- (e) Any almsperson or pensioner who is suffering from mental or other disease or infirmity causing his or her removal to a hospital or other similar institution.

(2) Upon the removal of any almsperson or matron or nurse the Trustees shall take possession of the room or rooms occupied by him or her.

(3) Any almsperson or pensioner removed under section (1) of this clause on account of mental or other disease or infirmity may be reappointed on recovery without previous notice being given of the vacancy and need not have the qualification as to residence.

50. *Regulations.*—The Trustees may prescribe from time to time such reasonable regulations as they consider expedient for the government of the almspeople but so that the same shall not be at variance or inconsistent with any of the provisions of this Scheme and by such regulations may provide that the almspeople shall render such assistance to each other and to the matrons or nurses as is within their power.

POOR'S BRANCH

51. *Application of income.*—The Trustees shall apply the income of the Poor's Branch in one or both of the following ways:—

- (1) In making grants in aid of the Almshouse and Pension Branch;
- (2) For the benefit of the poor of the said City of York generally or of such poor persons resident therein as they select in such ways as they may consider most advantageous to the recipients.

GENERAL PROVISIONS

52. *Appropriation of benefits.*—The appropriation of the benefits of the Charities shall be made by the Trustees from time to time at meetings of their body and not separately by any individual Trustee or Trustees; provided that the Trustees from time to time may appoint two or more members of their body to be a committee for dealing with any cases of emergency but all acts and proceedings of committees shall be reported in due course to the Trustees.

53. *Trustees not to be personally interested.*—No Trustee shall take or hold any interest in property belonging to the Charities otherwise than as a Trustee for the purposes thereof and no Trustee shall receive any remuneration, or be interested in the supply of work or goods, at the cost of the Charities.

54. *Charities not to relieve public funds.*—The funds or income of the Charities shall not be applied in relief of rates, taxes or other public funds.

55. *Alteration of Scheme.*—The Charity Commissioners in the exercise of their ordinary jurisdiction may establish from time to time Schemes for the alteration of any of the provisions of this Scheme as if those provisions had been made by the founder in the case of a Charity having a founder.

56. *Questions under Scheme.*—Any question as to the construction of this Scheme or as to the regularity or the validity of any acts done or about to be done under this Scheme shall be determined by the Charity Commissioners upon such application made to them for the purpose as they think sufficient.

57. *Date of Scheme.*—The date of this Scheme shall be the date of the Act of Parliament confirming the same.

FORM OF NOTICE

In the matter of THE YORK CITY CHARITIES, in the City of
YORK.

Notice is given that a vacancy exists for an almsperson [pensioner]
of these Charities.

Poor persons of good character who have resided in the City of
York for not less than four years next preceding the time of appoint-
ment are eligible for appointment. Where claims are equal preference
will be given to the applicant who has resided longest in the said City.

Application for appointment must be made in writing to
at _____ on or before
the 19 . Every applicant must state his or her
name, address, age and occupation and must be prepared to produce
sufficient testimonials and other evidence of his or her qualification
for appointment and unless physically disabled to attend in person.

Notes.—(1) In special cases to be approved by the Charity Com-
missioners persons who do not possess the prescribed qualification
as to residence may be appointed if otherwise qualified.

(2) Almspeople may be required to contribute a small weekly sum
towards the cost of maintaining the almshouses of the Charities.

Signed

Clerk to the Trustees.

FIRST SCHEDULE

Charity and description	Amount	Tenant, person liable or persons in whose name invested	Gross yearly income
	£ s. d.		£ s. d.
1. <i>Charity of Frances Barker.</i> 3 per cent. Savings Bonds, 1960-70 ...	106 4 8	The Official Trustees of Charitable Funds.	3 3 8
2. <i>Charity of Sir Martin Bowes.</i> 3 per cent. Savings Bonds, 1960-70 ...	63 14 10	do. do.	1 18 2
3. <i>Charity of George Buck.</i> 3 per cent. Savings Bonds, 1960-70 ...	21 5 0	do. do.	12 8
4. <i>St. Catherine's Hospital.</i> Land situate in Holgate Lane, in the City of York, with the buildings thereon known as St. Catherine's Hospital. Wayleave 2½ per cent. Consolidated Stock ...	— — 1,943 6 6	In hand The Postmaster General The Official Trustees of Charitable Funds.	— 0 1 0 48 11 8
2½ per cent. Consolidated Stock (Charity of John Hartley).	72 18 5	do. do.	1 16 0
2½ per cent. Consolidated Stock (Charity of James Luntley).	608 0 0	do. do.	15 4 0
2½ per cent. Consolidated Stock (Charity of Henry Myers).	603 6 4	do. do.	15 2 8
2½ per cent. Consolidated Stock (Charity of Green Simpson).	46 12 8	do. do.	1 3 4
3 per cent. Savings Bonds, 1960-70 (Charity of Charles Yates).	106 4 8	do. do.	3 3 8
5. <i>Clifton Parish Land Charity.</i> New Zealand 3½ per cent. Stock, 1963-66.	77 0 2	do. do.	2 10 0
6. <i>Cordwainers' Pension Charity.</i> 4 per cent. Consolidated Stock ... 2½ per cent. Annuities (Charity of Mark Buller). 2½ per cent. Treasury Stock, 1975 or after.	289 13 2 40 6 8 3,997 6 6	do. do. do. do. do. do.	11 11 8 1 0 0 99 18 8
7. <i>Charity of James Cotterill.</i> 3 per cent. Savings Bonds, 1960-70 ...	106 4 8	do. do.	3 3 8
8. <i>Cremitt Money.</i> 2½ per cent. Consolidated Stock ...	1,377 15 7	do. do.	34 8 8
9. <i>Charity of Fabian Farley.</i> 3 per cent. Savings Bonds, 1960-70 ...	31 17 5	do. do.	0 19 0
10. <i>Charity of Lancelot Foster.</i> 2½ per cent. Treasury Stock, 1975 or after.	2,064 11 1	do. do.	51 12 2
11. <i>The Thomas Fothergill Home for Working Men</i> and			

Charity and description	Amount	Tenant, person liable or persons in whose name invested	Gross yearly income
	£ s. d.		£ s. d.
12. <i>The Thomas Fothergill Home for Working Women.</i> Land situate in or near to Avenue Road, Clifton, in the City of York, with five almshouses thereon known as The Thomas Fothergill Home for Working Men and five almshouses thereon known as The Thomas Fothergill Home for Working Women.	—	In hand	—
Wayleaves	—	The Postmaster General	0 4 0
4 per cent. Consolidated Stock	1,372 10 10	The Official Trustees of Charitable Funds.	54 18 0
3½ per cent. Conversion Stock, 1961 or after.	4,598 19 8	do. do.	160 19 2
3½ per cent. War Stock	4,687 8 6	do. do.	164 1 2
2½ per cent. Treasury Stock, 1975 or after.	1,519 17 3	do. do.	37 19 10
2½ per cent. Defence Bonds (Extraordinary Repair Fund).	790 0 0	do. do.	19 15 0
13. <i>Charity of Rawlins Gould.</i> 2½ per cent. Consolidated Stock	533 13 10	do. do.	13 6 8
14. <i>Charity of John Hartley.</i> 2½ per cent. Consolidated Stock	588 6 7	do. do.	14 15 4
15. <i>Charity of Lady Sarah Hewley.</i> 3 per cent. Savings Bonds, 1960-70	531 3 4	do. do.	15 18 8
16. <i>Charity of Christopher Hutton.</i> The following sums of stock, 10s. per annum from the net income thereof and one half part of the residue of the said net income:—			
2½ per cent. Treasury Stock, 1975 or after.	4,392 13 4	do. do.	109 16 4
2½ per cent. Savings Bonds, 1964-67	477 16 10	do. do.	11 18 10
17. <i>Sir Arthur Ingram's Hospital.</i> Land situate at Bootham, in the City of York, with the buildings thereon known as Sir Arthur Ingram's Hospital.	—	In hand	—
Gardens	—	In hand	—
Wayleave	—	The Postmaster General	0 3 0
2½ per cent. Consolidated Stock	2,880 0 0	The Official Trustees of Charitable Funds.	72 0 0
Commonwealth of Australia 3½ per cent. Registered Stock, 1961-66 (Charity of Eve Atkinson).	211 2 11	do. do.	7 7 10
18. <i>Charity of the Reverend Charles Jackson.</i> 3 per cent. Savings Bonds, 1960-70	212 9 3	do. do.	6 7 4
19. <i>Charity of Peter Johnson.</i> 2½ per cent. Consolidated Stock	213 4 4	do. do.	5 6 4
20. <i>Charity of Bridget Lawrence.</i> 2½ per cent. Consolidated Stock	48 9 3	do. do.	1 4 0

Charity and description	Amount	Tenant, person liable or persons in whose name invested	Gross yearly income
	£ s. d.		£ s. d.
21. <i>Charity of Arthur Lawson.</i> 2½ per cent. Treasury Stock, 1975 or after.	904 17 9	The Official Trustees of Charitable Funds.	22 12 4
22. <i>Charity of Doctor Joseph Loveland.</i> 2½ per cent. Consolidated Stock ...	109 11 9	do. do.	2 14 8
23. <i>Three Gifts of James Melrose.</i> <i>Gift "A"—</i> New Zealand 3¼ per cent. Stock, 1963-66.	487 16 6	do. do.	15 17 0
<i>Gift "B"—</i> do.	677 2 8	do. do.	22 0 0
<i>Gift "C"—</i> do.	288 13 3	do. do.	9 7 6
24. <i>Mrs. Ann Middleton's Hospital.</i> Land situate at Skeldergate, in the City of York, with the buildings thereon known as Mrs. Ann Middleton's Hospital.	—	In hand	—
Wayleave	—	The Postmaster General The Official Trustees of Charitable Funds.	0 2 0 4 11 2
3 per cent. Savings Bonds, 1960-70 ...	152 3 4		
<i>Order of Charity Commissioners of 13th September, 1955.</i> 2½ per cent. Consolidated Stock (Charity of Stephen Beckwith). <i>Extraordinary Repair Fund—Order of Charity Commissioners of 17th March 1939.</i> British Electricity 4¼ per cent. Guaranteed Stock, 1974-79.	1,014 0 0	do. do.	} Dividends accumulating at compound interest.
3½ per cent. Defence Bonds ...	10 0 0	do. do.	
2½ per cent. Consolidated Stock...	5 13 10	do. do.	
<i>Extraordinary Repair Fund—Order of Charity Commissioners of 8th March 1940.</i> 3 per cent. Savings Bonds, 1960-70	345 0 0	do. do.	} do.
2½ per cent. Consolidated Stock...	289 2 11	do. do.	
2½ per cent. Consolidated Stock (Charity of Stephen Beckwith).	1,091 5 3	do. do.	
2½ per cent. Consolidated Stock (Charity of Mary Winfield Lambert).	233 14 6	do. do.	5 16 8
2½ per cent. Consolidated Stock (Charity of William Monckton).	200 0 0	do. do.	5 0 0
2½ per cent. Consolidated Stock (Charity of Thomas Norfolk).	333 6 8	do. do.	8 6 8
2½ per cent. Annuities (Charity of Frances Pool).	207 1 10	do. do.	5 3 8
York Corporation 3 per cent. Redeem- able Stock, 1955-65 (Charity of Frances Pool).	110 10 2	do. do.	3 6 4
2½ per cent. Consolidated Stock (Charity of Green Simpson).	93 5 4	do. do.	2 6 8
2½ per cent. Consolidated Stock (Charity of George Townend).	156 0 0	do. do.	3 18 0
25. <i>Charity of Mary Musgrave.</i> 3 per cent. Savings Bonds, 1960-70 ...	254 19 2	do. do.	7 12 10

Charity and description	Amount	Tenant, person liable or persons in whose name invested	Gross yearly income
	£ s. d.		£ s. d.
26. <i>Charity of Henry Myers.</i> 2½ per cent. Consolidated Stock ...	370 0 0	The Official Trustees of Charitable Funds.	9 4 0
27. <i>Charity of Richard North.</i> 3 per cent. Savings Bonds, 1960-70 ...	10 12 6	do. do.	0 6 4
28. <i>Charity of Richard Pickard.</i> 4 per cent. Consolidated Stock ...	1,936 13 7	do. do.	77 9 4
2½ per cent. Consolidated Stock ...	2,603 14 5	do. do.	65 1 8
29. <i>Charity of Mrs. Ramsden.</i> Perpetual yearly rentcharge ...	—	Corporation of York...	1 0 0
30. <i>Charity of Thomas Rogerson.</i> Perpetual yearly rentcharge ...	—	do. do.	1 10 0
31. <i>York Soup Kitchen.</i> New Zealand 3½ per cent. Stock, 1963-66.	342 17 11	The Official Trustees of Charitable Funds.	11 2 10
32. <i>The Terry Memorial Homes.</i> Land situate in Skeldergate, in the City of York, with the buildings thereon known as The Terry Memorial Homes.	—	In hand ...	—
York Corporation 3 per cent. Redeem- able Stock, 1955-65.	200 0 0	The Official Trustees of Charitable Funds.	6 0 0
33. <i>St. Thomas' Hospital.</i> Land situate in Nunnery Lane, in the City of York, with the buildings thereon known as St. Thomas' Hospital.	—	In hand ...	—
Gardens in rear ...	—	do.	—
Wayleave ...	—	The Postmaster General	0 1 0
2½ per cent. Consolidated Stock ...	107 7 7	The Official Trustees of Charitable Funds.	2 13 8
2½ per cent. Consolidated Stock (Charity of Stephen Beckwith).	1,755 19 9	do. do.	43 18 0
2½ per cent. Consolidated Stock (Charity of John Hartley).	145 16 10	do. do.	3 12 0
2½ per cent. Consolidated Stock (Charity of James Luntley).	1,529 8 2	do. do.	38 4 8
2½ per cent. Consolidated Stock (Charity of Green Simpson).	93 5 4	do. do.	2 6 8
2½ per cent. Consolidated Stock (Charity of George Townend).	104 0 0	do. do.	2 12 0
34. <i>Sir Henry Thompson's Pension Charity.</i> 3½ per cent. Conversion Stock, 1961 or after.	747 9 1	The Official Trustees of Charitable Funds.	26 3 2
2½ per cent. Consolidated Stock ...	7,112 18 0	do. do.	177 16 4
2½ per cent. Consolidated Stock (Charity of John Girdler).	218 10 5	do. do.	5 9 0
2½ per cent. Consolidated Stock (Charity of Thomas Norfolk).	166 13 4	do. do.	4 3 4
35. <i>Turner's Gift.</i> Perpetual yearly rentcharge ...	—	Corporation of York...	7 0 0
36. <i>Charity of John Vaux.</i> Perpetual yearly rentcharge ...	—	do. do.	15 0 0

Charity and description	Amount	Tenant, person liable or persons in whose name invested	Gross yearly income
	£ s. d.		£ s. d.
37. <i>Charity of Thomas Harry Walker.</i> 4 per cent. Consolidated Stock ...	5,424 10 11	The Official Trustees of Charitable Funds.	216 19 6
3 per cent. Savings Bonds, 1965-75 ...	4,476 0 3	do. do.	134 5 6
2½ per cent. Treasury Stock, 1975 or after.	4,392 13 4	do. do.	109 16 4
2½ per cent. Consolidated Stock ...	5,847 13 9	do. do.	146 3 8
British Transport 3 per cent. Guarant- eed Stock, 1978-88.	1,409 5 0	do. do.	42 5 6
Liverpool Corporation 3 per cent. Stock, 1954-64.	1,500 0 0	do. do.	45 0 0
West Bromwich Corporation 3 per cent. Redeemable Stock, 1954-56.	1,500 0 0	do. do.	45 0 0
New Zealand 4½ per cent. Stock, 1970-73.	2,153 10 10	do. do.	86 2 10
S. A. Brain and Company Limited 4 per cent. Perpetual First Mortgage Debenture Stock.	600 0 0	do. do.	24 0 0
20 Debentures of £5 each (fully paid) in Fulford (York) Golf Club Limited	100 0 0	do. do.	4 0 0
Unilever Limited 7 per cent. Cumula- tive Preference Stock.	300 0 0	do. do.	19 8 6
38. <i>Charity of Ann Watson.</i> 2½ per cent. Consolidated Stock ...	350 0 0	do. do.	8 15 0
39. <i>Sir Robert Watter's Hospital.</i> Land situate in Chapel Row, George Street, in the City of York, with the almshouses thereon.	—	In hand ...	—
Relay ...	—	The Postmaster General	0 6 0
2½ per cent. Consolidated Stock ...	1,046 0 0	The Official Trustees of Charitable Funds.	26 3 0
3 per cent. Savings Bonds, 1960-70 (Charity of Marion Bellerby).	188 15 11	do. do.	5 13 2
40. <i>Sir Robert Watter's Gift.</i> 3 per cent. Savings Bonds, 1960-70 ...	127 9 8	do. do.	3 16 6
41. <i>Charity of William Weddall.</i> 3 per cent. Savings Bonds, 1960-70 ...	106 4 8	do. do.	3 3 8
2. <i>Charity of Sir Thomas White.</i> 2½ per cent. Consolidated Stock ...	663 4 1	do. do.	16 11 4
2½ per cent. Treasury Stock, 1975 or after.	202 1 3	do. do.	5 1 0
New Zealand 3½ per cent. Stock, 1963-66.	101 9 7	do. do.	3 5 10
<i>Held jointly for Charities of Sir Thomas White, Peter Johnson and Doctor Joseph Loveland.</i>			
New Zealand 3½ per cent. Stock, 1963-66.	615 15 11	do. do.	20 0 2
Cash on deposit ...	132 5 9	York County Savings Bank.	3 11 0
<i>Whitehead's Gift.</i> Perpetual yearly rentcharge ...	—	Corporation of York...	1 0 0

Charity and description	Amount	Tenant, person liable or persons in whose name invested	Gross yearly income
	£ s. d.		£ s. d.
44. <i>Sisters Wilson's Home.</i>			
Land situate in the City of York with the buildings thereon known as 17 and 19 East Parade and two cottages at the rear all used as almshouses.	—	In hand	—
Land situate in Middlesbrough in the County of York, with the dwelling- houses thereon known as 30 and 32 Borough Road West.	—	Amy Snaith, Winifred Bussey.	58 4 0
Wayleaves	—	The Postmaster General	0 5 0
3 per cent. Savings Bonds, 1960-70 ...	586 12 6	The Official Trustees of Charitable Funds.	17 11 10
York Corporation 3 per cent. Redeem- able Stock, 1955-65.	2,500 0 0	do. do.	75 0 0
45. <i>Charity of James Woodhouse.</i>			
2½ per cent. Consolidated Stock ...	377 9 10	do. do.	9 8 8
46. <i>Charity of William Wright.</i>			
3 per cent. Savings Bonds, 1960-70 ...	291 12 6	do. do.	8 14 10

Notes:

(1) The land belonging to the Charity known as St. Catherine's Hospital was vested in The Official Trustee of Charity Lands by an Order of the Charity Commissioners of the 12th January, 1900.

(2) The land belonging jointly to the Charities called The Thomas Fothergill Home for Working Men and The Thomas Fothergill Home for Working Women was vested in the said Official Trustee by the above-mentioned Scheme of the 28th February, 1936.

(3) The land belonging to the Charity known as Sir Arthur Ingram's Hospital was vested in the said Official Trustee by the above-mentioned Scheme of the 9th August, 1921.

(4) The land belonging to the Charity called Mrs. Ann Middleton's Hospital was vested in the said Official Trustee by the said Order of the 12th January, 1900.

(5) The land belonging to the Charity known as The Terry Memorial Homes was vested in the said Official Trustee by the above-mentioned Scheme of the 14th March, 1902.

(6) The land belonging to the Charity known as St. Thomas' Hospital was vested in the said Official Trustee by the said Order of the 12th January, 1900.

(7) The land belonging to the Charity called Sisters Wilson's Pension Charity was vested in the said Official Trustee by the said Order of the 12th January, 1900.

(8) The land belonging to the Charity called Sir Robert Watter's Charity was vested in the said Official Trustee by the above-mentioned Scheme of the 24th February, 1925.

SECOND SCHEDULE

Charities	Persons to whom payments are to be made	Yearly sums
		£ s. d.
Charity numbered 1 above FRANCES BARKER FOR NON- EDUCATIONAL PURPOSES.	Minister of St. Mary, Castlegate with St. Michael, Spurriergate, for his own use.	One half of clear yearly income.
Charity numbered 3 above GEORGE BUCK	Minister of St. Mary, Castlegate with St. Michael, Spurriergate, for preach- ing a sermon on the 23rd April in every year.	0 6 4
Charity numbered 7 above JAMES COTTERILL	Minister of St. Mary, Castlegate with St. Michael, Spurriergate, for his own use.	3 3 8
Charity numbered 20 above BRIDGET LAWRENCE ...	Minister of St. Martin, Coney Street with St. Helen, for reading the service appointed for St. Mark's Day.	0 10 0
Charity numbered 30 above THOMAS ROGERSON	Minister of St. Sampson with Holy Trinity, King's Court, for his own use.	0 10 0
	Parochial Church Council of the Ecclesiastical Parish of St. Sampson with Holy Trinity, King's Court, for the repair of the Church of St. Sampson.	1 0 0
Charity numbered 36 above JOHN VAUX	Minister of St. Sampson with Holy Trinity, King's Court, for preaching sermons in the Church of St. Sampson on the 25th March, 24th June and 27th December in each year.	7 10 0
	Minister of St. Martin with St. Gregory, Micklegate, for preaching sermons on the 25th March and 27th December in each year.	4 10 0
	Minister of All Saints, Huntington, for his own use.	2 0 0
Charity numbered 40 above SIR ROBERT WATTER'S GIFT	Minister of All Saints with St. Peter- the-Little, Pavement and St. Cruse, for his own use.	3 16 6

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